

Privileges and Immunities of Foreign States and Diplomatic Representatives Act, 1970

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Foreign States and Diplomatic Representatives' Facilities and Immunities Act, 2027

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Amending Acts

1. Republic Strengthening and Some Nepal Laws Amendment Act, 2066 2066.1.07

Act No. 14 of the year 2027

An Act Made to Provide for Facilities and Immunities Relating to Foreign States and Diplomatic Representatives

Preamble: Whereas it is desirable to make provisions relating to granting facilities and immunities to foreign states and diplomatic representatives and employees of foreign states in accordance with international law and practice;

Now, therefore, His Majesty King Mahendra Bir Bikram Shah Deva has enacted this Act with the advice and consent of the National Panchayat. 1. Short Title, Extent and Commencement: (1) This Act may be called the "Foreign States and Diplomatic Representatives' Facilities and Immunities Act, 2027".

(2) This Act shall extend throughout Nepal deleted by the Republic Strengthening and Some Nepal Laws Amendment Act, 2066.

(3) This Act shall come into force immediately. 2. Definitions: Unless the subject or context otherwise requires, in this Act,-

(a) "Foreign state" means a foreign state having diplomatic relations with Nepal deleted by the Republic Strengthening and Some Nepal Laws Amendment Act, 2066.

(b) "Mission" means a mission established by a foreign state in Nepal deleted by the Republic Strengthening and Some Nepal Laws Amendment Act, 2066. for the purpose of performing diplomatic functions.

(c) "Head of mission" means a person appointed by a foreign state to act as the head of its mission, with the approval of the Government of Nepal deleted by the Republic Strengthening and Some Nepal Laws Amendment Act, 2066.

(d) "Diplomatic employee" means an employee of the mission serving in a diplomatic post of the mission.

(e) "Diplomatic representative" means the head of mission or a diplomatic employee of the mission.

(f) "Administrative and technical employee" means an employee of the mission performing administrative and

technical work of the mission.

(g) "Service employee" means an employee of the mission performing internal work of the mission.

(h) In relation to a diplomatic representative, "family" means a member of the family of the head of mission or an employee of the mission who forms part of his household and resides with him and is dependent on him.

(i) "Premises of the mission" means the buildings or parts of buildings used for any purpose of the mission, including the residence of the head of mission, irrespective of ownership, and the land appurtenant thereto.

(j) "Private servant" means a private servant not employed by a foreign state but performing domestic work for any member of the mission. 3. Inviolability of Premises of the Mission: (1) The premises of the mission shall be inviolable.

No employee or representative of the Government of Nepal may enter them without the permission of the head of mission. (2) It shall be the duty of the Government of Nepal to take appropriate steps to protect the premises of the mission against any intrusion or damage and against any act which may disturb the peace or dignity thereof. (3) The premises of the mission, the property and goods therein, and the means of transport of the mission shall not be searched, requisitioned, attached, seized, or sold by auction. 4. Inviolability of Archives of the Mission: The archives and documents of the mission shall be inviolable at any time and wherever they may be. 5. Inviolability of Official Correspondence of the Mission: (1) The official correspondence of the mission shall be inviolable, and the diplomatic bag shall not be opened or detained. Provided that such bag shall be clearly marked on the outside with the word "Diplomatic", and no article other than diplomatic bag items shall be placed therein. (2) The diplomatic courier shall enjoy personal inviolability and shall not be liable to arrest or detention. 6. Exemption from Taxes in Respect of Premises of the Mission: The foreign state and the head of mission shall be exempt from all national, amended by the Republic Strengthening and Some Nepal Laws Amendment Act, 2066. local taxes and dues in respect of the premises of the mission, except taxes and dues payable for specific services rendered. Provided that no party contracting with the foreign state, the mission, or the head of mission shall be exempt from any tax or dues payable under the laws of Nepal. 7. Personal Inviolability of Diplomatic Representative: A diplomatic representative shall enjoy personal inviolability and shall not be liable to arrest or detention. Provided that, in connection with any criminal charge, the concerned employee of the Government of Nepal may question the diplomatic representative in a manner that preserves his dignity and with due respect, for the purpose of obtaining information relating to the incident. 8. Inviolability of Private Residence of Diplomatic Representative: The private residence of a diplomatic representative shall enjoy the same inviolability as the premises of the mission, and his papers, correspondence and private property shall also be inviolable, except where otherwise provided in this Act. 9.

Other Immunities for Diplomatic Representative: (1) A diplomatic representative shall be exempt from any social security provisions applicable in Nepal deleted by the Republic Strengthening and Some Nepal Laws Amendment Act, 2066. (2) The Government of Nepal shall exempt a diplomatic representative from all personal services, any kind of public service, and military obligations. 10. Immunity of Diplomatic Representative from Criminal, Civil and Administrative Jurisdiction of Nepal deleted by the Republic Strengthening and Some Nepal Laws Amendment Act, 2066.: (1) A diplomatic representative shall enjoy immunity from all criminal, civil and administrative jurisdiction, except in the following cases:- (a) A real action relating to private immovable property situated in the territory of Nepal deleted by the Republic Strengthening and Some Nepal Laws Amendment Act, 2066. of the diplomatic representative, unless he holds it on behalf of the sending state for the purposes of the mission; (b) An action relating to succession in which the

diplomatic representative is involved as a private person and not on behalf of the foreign state; and (c) An action arising out of any professional or commercial activity exercised by the diplomatic representative outside his official functions. (2) A diplomatic representative shall not be obliged to give evidence as a witness. (3) No measures of execution shall be taken against a diplomatic representative except in the cases coming under clauses (a), (b) and (c) of sub-section (1), and, even in cases where measures of execution may be taken, the personal inviolability or the inviolability of the residence of the diplomatic representative shall not be violated. (4) Notwithstanding anything contained in this section, a diplomatic representative who enjoys immunity from the aforesaid jurisdiction shall not enjoy such immunity in respect of a counter-claim directly related to the principal claim in proceedings initiated by himself. 11.

Exemption from Taxes for Diplomatic Representative: A diplomatic representative shall be exempt from all national, amended by the Republic Strengthening and Some Nepal Laws Amendment Act, 2066. local taxes and dues on person or property, except the following:- (a) Indirect taxes of a kind which are normally incorporated in the price of goods or services; (b) Taxes and dues on private immovable property situated in Nepal deleted by the Republic Strengthening and Some Nepal Laws Amendment Act, 2066. of the diplomatic representative, unless he holds it on behalf of the sending state for the purposes of the mission; (c) Estate, succession or inheritance taxes imposed personally on the diplomatic representative, Provided that, in respect of movable property not prohibited from export at the time of death of the diplomatic representative or a member of his family, such taxes shall not be imposed even upon the death of the diplomatic representative, where such property was in Nepal deleted by the Republic Strengthening and Some Nepal Laws Amendment Act, 2066. solely because of the presence of that person; (d) Taxes on private income having its source in Nepal deleted by the Republic Strengthening and Some Nepal Laws Amendment Act, 2066. and received by the diplomatic representative; (e) Capital taxes on investments made in any commercial undertaking in Nepal deleted by the Republic Strengthening and Some Nepal Laws Amendment Act, 2066. by the diplomatic representative; (f) Taxes or charges levied for specific services rendered; and (g) Court fees, registration fees, stamp duties, and copy fees in respect of immovable property. 12. **Exemption from Customs Duties:** (1) The Government of Nepal shall, in accordance with the laws of Nepal in force from time to time, grant exemption from all customs duties and related taxes and charges, except charges for storage, carriage and similar services, in respect of the following goods:- (a) Goods for the official use of the mission; and (b) Goods for the household of the diplomatic representative and goods for the personal use of his family. (2) The baggage and other goods of a diplomatic representative shall not be inspected or searched unless there are serious grounds for believing that they contain goods not entitled to exemption from customs duties under sub-section (1), or goods the import or export of which is prohibited by the laws of Nepal or which are subject to quarantine regulations, and such inspection or search shall be conducted only in the presence of the diplomatic representative or his authorized representative. 13.

Facilities and Immunities for Family of Diplomatic Representative: Members of the family of a diplomatic representative who are not Nepali nationals shall enjoy all facilities and immunities under this Act to the same extent as a diplomatic representative personally enjoys. 14. **Facilities and Immunities for Administrative and Technical Employees and Their Families:** Administrative and technical employees of the mission who are not Nepali nationals or permanent residents of Nepal deleted by the Republic Strengthening and Some Nepal Laws Amendment Act, 2066. and members of their families shall enjoy only the facilities and immunities mentioned in sections 7 to 11, except the facilities and immunities under sub-section (1) of section 10 in respect of acts performed outside the scope of their duties. They shall enjoy the facilities under clause (b) of sub-section (1) of section 12 in respect of goods imported upon first taking up their post. 15. **Facilities and Immunities for Service Employees:** Service employees of the mission who are not Nepali nationals or

permanent residents of Nepal deleted by the Republic Strengthening and Some Nepal Laws Amendment Act, 2066. shall enjoy immunity in respect of acts performed in the course of their duties, and exemption from taxes and dues on the remuneration received for their employment. 16. Exemption from Taxes for Private Servants: Private servants of a member of the mission who are not Nepali nationals or permanent residents of Nepal deleted by the Republic Strengthening and Some Nepal Laws Amendment Act, 2066. shall be exempt from taxes and dues on the remuneration received for their employment. 17. Facilities and Immunities for Diplomatic Representatives who are Nepali Nationals or Permanent Residents of Nepal deleted by the Republic Strengthening and Some Nepal Laws Amendment Act, 2066.: A diplomatic representative who is a Nepali national or a permanent resident of Nepal deleted by the Republic Strengthening and Some Nepal Laws Amendment Act, 2066. shall enjoy immunity from jurisdiction and inviolability under this Act only in respect of official acts performed in the course of his duties, unless the Government of Nepal has granted additional facilities and immunities. 18.